

Veerendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 July 2022 · Writ-C No. 16887 of 2022 · **Writ disposed; petitioner relegated to clause 6.5 objection; coercive recovery stayed eight weeks.**

HEADNOTE

A writ challenging a recovery citation for electricity dues is disposed of without a merits decision by relegating the consumer to an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, with a time-bound hearing and a limited stay of coercive recovery.

FACTUAL SUMMARY

Veerendra Singh filed a writ petition in the Allahabad High Court seeking to quash a recovery citation dated 11 January 2022 issued by respondent no. 2 and to restrain respondent no. 3, the Power Distribution Corporation, from recovering the demanded amount with interest and other expenses. Counsel for the distribution company stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Without expressing any opinion on merits, a writ challenging a recovery citation dated 11.01.2022 is disposed of by granting the petitioner liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005, before the distribution licensee within four weeks; if submitted, the objection shall be decided in accordance with law within the next four weeks after affording reasonable opportunity of hearing; no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ against a recovery citation disposed of by relegating the petitioner to a clause 6.5 objection before the distribution licensee, without deciding the demand on merits. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The court treated an objection under Para 6.5 as the statutory remedy for the disputed electricity demand, to be decided after hearing within a fixed period. ¶ 1

6.5-representation-as-appropriate-remedy On the licensee's statement, the High Court held a time-bound clause 6.5 representation to be the appropriate remedy and stayed coercive recovery pending that process. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION AND THE UNDERLYING ELECTRICITY DEMAND

Court expressly declined to express any opinion on the merits. ¶ 1